20STCV35324 20STCV35324

County: los-angeles

Division: Civil Law and Motion

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Case Number: 20STCV35324 Hearing Date: July 2, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

16220 LINDA TERRACE LLC, et al.,

Plaintiffs,

vs.

HA TIKVA MANAGEMENT, LLC, et al.,

Defendants.

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CASE NO.: 20STCV35324

[TENTATIVE] ORDER DENYING PLAINTIFFS' MOTION FOR ATTORNEY FEES

Dept. 506

8:30 a.m.

July 2, 2026

On May 20, 2025, a jury returned a verdict in favor of Plaintiffs 16220 Linda Terrace LLC and Scott A. Moore and against Defendants Ha Tikva Management LLC and Eugene Rapaport. The Court entered judgment on July 21, 2025.

On September 17, 2025, Plaintiffs filed a motion for attorney fees and costs.

DISCUSSION

Plaintiffs request $347,982.00 in attorney fees and $39,540.16 in costs. On November 21, 2025, the Court granted in part Defendants' motion to tax costs, permitting Plaintiffs to recover $16,277.37 in costs. Plaintiffs agree that the request for costs is now moot. (Reply at p. 8.)

California

courts apply the “lodestar” approach to determine what attorney fees are reasonable. (See, e.g., Holguin v. DISH Network LLC (2014) 229 Cal.App.4th 1310, 1332.) This inquiry “begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) From there, the “lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid.) Relevant factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates. (City of Colton v. Singletary (2012) 206 Cal.App.4th 751, 784 (City of Colton).)

Plaintiffs seek attorney fees pursuant to contract. (Motion at pp. 3-4; see Code Civ. Proc., § 1033.5, subd. (a)(10)(A).) Defendants argue that not all fees are recoverable, and “the Court must still determine which fees were incurred for contract-based claims and which relate to tort claims.” (Opposition at p. 6.) Plaintiffs prevailed on their claims for breach of contract and fraud, as well as on their defenses against Defendants’ cross-claims for breach of contract, fraud, professional negligence, and breach of fiduciary duty. As Defendants observe, Plaintiffs “seek fees incurred across the entire litigation, including work on fraud-based issues.” (Id. at p. 7.)

“Apportionment is not required when the issues in the fee and nonfee claims are so inextricably intertwined that it would be impractical or impossible to separate the attorney’s time into compensable and noncompensable units.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 159.) Plaintiffs make no attempt to show that all of the work performed and the different claims were inextricably intertwined. Instead, Plaintiffs merely assert a right to attorney fees and contend that their fee request is presumptively reasonable. Even when faced with Defendants’ Opposition, Plaintiffs’ Reply says nothing more that that “here, all relevant documents are covered by the attorney-fee provision,” and all parties raised contract and non-contract claims and defenses. (Reply at pp. 4-5.)

Defendants also argue that Moore cannot recover attorney fees for his self-representation. (Opposition at pp. 8-9.) “[A]n attorney who chooses to litigate in propria persona and therefore does not pay or become liable to pay consideration in exchange for legal representation cannot recover ‘reasonable attorney’s fees’ under Civil Code section 1717 as compensation for the time and effort he expends on his own behalf or for the professional business opportunities he forgoes as a result of his decision.” (Trope v. Katz (1995) 11 Cal.4th 274, 292.) The Supreme Court specifically noted that contractual attorney fees may be awarded for attorney fees “which are incurred to enforce that contract,” but because a self-represented attorney is not obligated to pay attorney fees, “[i]t follows that an attorney litigating in propria persona cannot be said to ‘incur’ compensation for his time and his lost business opportunities.” (Id. at p. 280.) “Accordingly, the usual and ordinary meaning of the words ‘attorney’s fees,’ both in legal and in general usage, is the consideration that a litigant actually pays or becomes liable to pay in exchange for legal representation. An attorney litigating in propria persona pays no such compensation.” (Ibid.)

Plaintiffs “wholeheartedly agree, and Moore makes no such claim” for his own fees. (Reply at p. 6.) According to Plaintiffs, “[t]The instant fee motion does not seek an award of attorney fees to Moore based on his ‘self-representation’ work, only for his professional services rendered to Linda Terrace.” (Ibid.) Yet, Plaintiffs proceed to explain that “the undisputed factual circumstances before the Court demonstrate that Moore did not, and could not, separately represent Linda Terrace at trial without also representing his own interests. . . . To defend Linda Terrace and to prosecute its claims required Moore to also defend himself.” (Ibid.)

Defendants argue that Plaintiffs’ lodestar calculations are unreliable on their face. (Opposition at p. 10.) Indeed, Plaintiffs request $347,982.00 in attorney fees, but their figures (419.9 hours at $400/hour and 531.5 hours at $350/hour) result in a total of $353,985.00.

Some of Plaintiffs’ billing records are also unreliable. For example, on April 30, 2020 (five months before this action was filed), counsel billed 11.6 hours for “consulting.” (Opposition at pp. 10-11.) Another 8.5 hours was billed in a single day, also several months before the action was filed. (Id. at p. 11.) Defendants also identify duplicate entries, combined tasks, and broad descriptions, which do not allow for a meaningful determination of what time was reasonable and necessary. (Ibid.)

It is Plaintiffs' burden to document the appropriate hours expended. (City of Colton, supra, 206 Cal.App.4th at p. 784.) Plaintiffs have not done so. "Judges are not like pigs hunting for truffles buried in briefs." (Greenwood v. FAA (1994) 28 F.3d 971, 977.) The Court cannot—and will not—attempt to parse the records to determine a reasonable amount of hours.

"A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.) "'If . . . the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be reduction of their fee to what they should have asked in the first place.'" (Ibid.)

Accordingly, the motion is denied.

CONCLUSION

The motion for attorney fees is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 2nd day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court